

4. All internal affairs, complaint, investigation, and disciplinary records pertaining to Plaintiff that bear on his credibility, physical condition, or honesty, including but not limited to materials produced or referenced in the Sacramento County civil action involving Plaintiff.

Defendants provided two declarations of counsel. The first declaration filed with the moving papers provides that Defendants attempted to subpoena the requested records from the California Highway Patrol who first stated that Plaintiff was not a peace officer, then stated that this was an error and Plaintiff is a peace officer. The declaration provides no evidence regarding the materiality the records sought and does not meet the minimum requirements for the Court to determine that a plausible factual foundation exists. The lack of supporting evidence was raised in the Oppositions. With the Reply, Defendants provided another declaration of counsel.

The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers. This principle is most prominent in the context of summary judgment motions, which is not surprising, given that it is a common evidentiary motion. “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...” and if permitted, the other party should be given the opportunity to respond.

Jay v Mahaffey (2013) 218 Cal. App. 4th 1522, 1538-1539.

Beside the issues of timing, the Court notes that the second declaration does not address the records requested. The threshold showing requires that the moving party provide, through affidavits, a plausible factual foundation for how the records are material to the subject matter of the pending litigation. Defendants provide that Plaintiff did not testify truthfully at his deposition regarding alcohol use in the months prior to the incident, that an in camera review was ordered in on a *Pitchess* motion made in the case of *Weaver v. California Highway Patrol* from Sacramento County, and that Plaintiff testified that he violated his training as a CHP officer by failing to report an injury accident and the report states that a friend said that Plaintiff did not want law enforcement involved. The declaration makes no showing as to any of the four requests. Defendants have essentially presented evidence of what is characterized as dishonesty and now seek an entire personnel file from the California Highway Patrol. It appears that some of the records could possibly be relevant to the case at hand (such as documents showing prior injuries or wage statements). However, Defendants have failed to make the necessary threshold evidentiary showing for the Court to order an in-camera review.

The motion is **DENIED** without prejudice. Defendants provided a proposed Order that will be modified to reflect the Court’s ruling.

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

Tentative Ruling on Motion to Be Relieved as Counsel: Yue Zhao of Swanson Law Office moves to be relieved as counsel for Defendant Delight Foods, Inc. CRC 3.1362 sets forth the notice requirements for a Motion to be Relieved as Counsel.

Service

The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.

(1) If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

- (A) The service address is the current residence or business address of the client; or
- (B) The service address is the last known residence or business address of the client and

the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(2) If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

CRC 3.1362(d).

The Declaration of Yue Zhao notes that the last known address “was verified via PeopleMap on 2/20/26.” No further information is provided regarding any attempts made to confirm the address. February 20, 2026 is more than 30 days ago.

Counsel has not complied with the notice requirements set forth in CRC 3.1362. The motion is **DENIED** without prejudice. The proposed Order provided cannot be modified to reflect the Court’s ruling. Delight Food’s counsel is to prepare the Order.

9:00 a.m. – Review Hearings

COGLITORE HOLDINGS LLC VS. BUNDY

CASE NUMBER: 26CVG-00180

This matter is on calendar for status of accounting. The Judgment of Abandonment by Default (Salvage) was entered on March 4, 2026 ordered disposal of the mobile home. The Inventory was filed on April 6, 2026. The matter was last on calendar on June 8, 2026 and continued to today to allow time for the Accounting, which has not been filed No status report was filed. **An appearance is necessary on today’s calendar.**

JACKSON VS. COLLINS, ET AL.

CASE NUMBER: 24CV-0206492

This matter is on calendar for review regarding status of counsel. The Court notes that while Plaintiff’s counsel filed Notice of Entry of Order for the Motion to be Relieved, the attached Order is an unfiled and unsigned copy of the proposed Order. Plaintiff must be served with a copy of the actual Order filed in this matter. Plaintiff’s counsel remains as counsel of record until Plaintiff is served with the Order executed on July 27, 2026 and Notice of Entry of Order is filed. Additionally, due to service issues, Defendant/Cross-Complainant’s Motion for Leave to file Amended Cross-Complaint was denied on this morning’s Law & Motion calendar. **An appearance is necessary on today’s calendar.**

LOMELI, ET AL. VS. DELIGHT FOODS, ET AL.

CASE NUMBER: CVCV18-0191244

This matter is on calendar for review regarding status of the case. The Court notes that the bankruptcy stay imposed based on the Delight Foods bankruptcy was lifted on July 6, 2026. The Court notes that Defendants Steven Ahrens and Rosa Linda Ahrens recently filed a Notice of Bankruptcy, however, the date of the file stamp on the Voluntary Petition is August 23, 2024. The Court will need an update regarding the Ahrens bankruptcy. The Court notes that final approval of the class action settlement was granted on August 12, 2024 and a judgment has been entered. No party has provided a status as to how or if the judgment was affected by the bankruptcy proceedings. **An appearance by counsel for all parties is necessary on today’s calendar. The Court expects**